

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DEVON ROCCO,

Plaintiff,

SUMMONS

—against—

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, CAPTAIN ROBERT
BOCCHINO, UNKNOWN POLICE OFFICERS OF
THE 122nd PRECINCT,

Index No.:

Date of Filing:

Defendants.

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue designated is New York County.

DATED: New York, New York
May 21, 2014

Yours etc.,

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DEVON ROCCO,

Plaintiff,

VERIFIED COMPLAINT

—against—

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, CAPTAIN ROBERT
BOCCHINO, UNKNOWN POLICE OFFICERS OF
THE 122nd PRECINCT,

Defendants.

Goldsmith & Associates, PLLC, on behalf of plaintiff, hereby provides notice of the following transactions and occurrences:

PARTIES

1. Devon Rocco (“Rocco”) is a resident of the County of Richmond, New York.
2. Upon information and belief, the New York City Police Department (“NYPD”) is an agency of the City of New York (“City”); and, Captain Robert Bocchino (“Bocchino”) is the commanding officer over Unknown Police Officers (“NYPD Officers”) located at the 122nd Precinct of the NYPD.

STATEMENT OF FACTS

3. All of the following occurred in Staten Island, New York.
4. Beginning on December 28, 2011 and continuing through July 10, 2013, NYPD Officers have engaged in a continuing course conduct of unlawfully detaining Rocco by means of arrests, searches, stops, frisks, inquiries and/or requests for information.

5. The aforesaid course of plaintiff's unlawful detentions by NYPD Officers occurred under circumstances that include, but are not limited to, the following approximate times and locations:

a) Street-encounter on December 28, 2011 at Armstrong Avenue & Hylan Boulevard for allegedly possessing a firearm;

b) Street-encounter on June 29, 2012, at Armstrong Avenue & Hylan Boulevard with guns drawn for allegedly fitting the description of a robbery suspect possessing a firearm;

c) Car stop on July 10, 2012 at Manhattan Beach in Tottenville;

d) Car stop on February 17, 2013 at 6420 Amboy Road for allegedly littering;

e) Car stop in June of 2013 at Armstrong Avenue & Hylan Boulevard for allegedly fitting the description of a robbery suspect;

f) Street-encounter on June 20, 2013 at Robinson Avenue & King Street, whereupon NYPD Officers inserted a flashlight into the front and rear of plaintiff's underpants, pulled down plaintiff's underpants, exposed plaintiff's genitalia, touched and searched plaintiff's penis, testicles & inner anus; and,

g) Car stop on July 10, 2013 at Manhattan Beach in Tottenville.

CAUSES OF ACTION

AS FOR A FIRST CAUSE OF ACTION **FALSE ARREST**

6. Plaintiff repeats ¶¶ 1-5 of the allegations.

7. On or about December 28, 2011, June 29, 2012, July 10, 2012, February 17, 2013, June of 2013 and June 20, 2013 and July 10, 2013, NYPD Officers intended to, and did in fact, confine plaintiff.

8. Plaintiff was conscious of his confinement at each time.
9. Plaintiff did not consent to being confined at anytime.
10. NYPD Officers were neither justified by probable cause, nor otherwise privileged, at anytime when confining plaintiff.

AS FOR A FIRST CAUSE OF ACTION
MALICIOUS PROSECUTION

11. Plaintiff repeats ¶¶ 1-10 of the allegations.
12. Criminal proceedings were commenced and continued as a result of the aforementioned detentions that occurred on or about December 28, 2011, June 29, 2012, July 10, 2012, February 17, 2013, June of 2013 and June 20, 2013 and July 10, 2013.
13. Each proceeding was terminated in favor of plaintiff.
14. Each proceeding was commenced and continued without probable cause and motivated by actual malice against plaintiff.

AS FOR A THIRD CAUSE OF ACTION
ABUSE OF PROCESS

15. Plaintiff repeats ¶¶ 1-14 of the allegations.
16. NYPD Officers intended to harm plaintiff by issuing him summonses on or about December 28, 2011, June 29, 2012, July 10, 2012, February 17, 2013, June of 2013 and June 20, 2013 and July 10, 2013, all without probable cause, excuse or justification.
17. Each summons was of the kind regularly issued for criminal process.
18. Each summons was used in a perverted manner to obtain a collateral objective.

AS FOR A FOURTH CAUSE OF ACTION

ASSAULT & EXCESSIVE FORCE

19. Plaintiff repeats ¶¶ 1-18 of the allegations.

20. On or about December 28, 2011, June 29, 2012, July 10, 2012, February 17, 2013, June of 2013 and June 20, 2013 and July 10, 2013, NYPD Officers subjected plaintiff to physical conduct that placed him in imminent apprehension of harmful conduct.

21. NYPD Officers were neither justified by probable cause, nor otherwise privileged in their official duties, at anytime to subject plaintiff to physical conduct.

AS FOR A FIFTH CAUSE OF ACTION **BATTERY & EXCESSIVE FORCE**

22. Plaintiff repeats ¶¶ 1-21 of the allegations.

23. On or about December 28, 2011, June 29, 2012, July 10, 2012, February 17, 2013, June of 2013 and June 20, 2013 and July 10, 2013, NYPD Officers intentionally subjected plaintiff to bodily conduct that was offensive in nature.

24. NYPD Officers were neither justified by probable cause, nor otherwise privileged in their official duties, at anytime to subject plaintiff to physical conduct.

AS FOR A SIXTH CAUSE OF ACTION **CIVIL RIGHTS VIOLATIONS (INDIVIDUAL)**

25. Plaintiff repeats ¶¶ 1-24 of the allegations.

26. On or about December 28, 2011, June 29, 2012, July 10, 2012, February 17, 2013, June of 2013 and June 20, 2013 and July 10, 2013, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution and federal law.

27. Said deprivation of rights, privileges and immunities of plaintiff were attributable to the NYPD Officers, who acted under color of state law, as a result of their false arrests, malicious prosecutions, abuse of process and use of excessive force.

AS FOR A FIRST CAUSE OF ACTION
CIVIL RIGHTS VIOLATIONS (MUNICIPAL)

28. Plaintiff repeats ¶¶ 1-27 of the allegations.

29. On or about December 28, 2011, June 29, 2012, July 10, 2012, February 17, 2013, June of 2013 and June 20, 2013 and July 10, 2013, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution and federal law.

30. Said deprivation of rights, privileges and immunities of plaintiff were attributable to the City, NYPD and Bocchino for their individual and/or collective implementation and/or execution of a policy statement, ordinance, regulation or officially adopted decision, otherwise promulgated and occurring pursuant to a practice so permanent and well settled as to constitute a custom or usage.

31. At least thirty days have elapsed since service of a notice of claim

32. The amount of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

DEMAND FOR RELIEF

In this action to recover damages for personal injury, plaintiff demands relief in an amount to be determined upon a trial of this action, which shall include, but not be limited to punitive damages, compensatory damages, actual damages, attorney's fees, costs & disbursements, as well as all other available damages permitted by law.

DATED: New York, New York
May 23, 2014

Respectfully Submitted,

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